

Devendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 21 March 2017 · Writ-C No. 11645 of 2017 · Writ-C No. 11645 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.14 for bill installments.**

HEADNOTE

A writ seeking only that installments be fixed for depositing an electricity bill is not entertained. The consumer may apply to the competent authority under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Devendra Singh filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, seeking a direction that installments be fixed for depositing his electricity bill. Counsel for the petitioner advanced no other contention. Appearing for the respondents, counsel submitted that the petitioner could obtain that relief by moving the competent authority under Clause 6.14 of the Electricity Supply Code, 2005. The Division Bench did not examine the bill or the petitioner's ability to pay on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment of electricity bill

HOLDING

Where the only relief sought is that installments be fixed for depositing an electricity bill, the High Court will not entertain a writ petition because the consumer can apply to the competent authority under Clause 6.14 of the Electricity Supply Code, 2005. The writ is dismissed. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Clause 6.14 is the Code route for installment of an electricity bill; a writ seeking only that facility is declined so the consumer can apply to the competent authority. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALLMENT OF THE ELECTRICITY BILL ON THE FACTS

Left to an application before the competent authority under Clause 6.14. ¶ 1